

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
RICHARD ADAMS

Plaintiff,

-against-

CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, P.O. RICHARD CONDOR
badge # 94605, and P.O. "JOHN" DECKET
Badge # 18002.

Defendants
-----X

TO THE ABOVE NAMED DEFENDANT(S):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiffs' Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York; and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

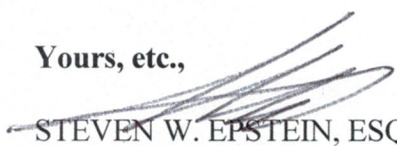
DATED: New York, New York
March 24, 2015

Defendants' address(es):

THE CITY OF NEW YORK
100 Church Street
New York, N.Y. 10007

NEW YORK CITY POLICE DEPARTMENT
P.O. RICHARD CONDOR badge # 94605
and P.O. "JOHN" DECKET Badge # 18002
1 Police Plaza
New York, N.Y. 10007

Yours, etc.,


STEVEN W. EPSTEIN, ESQ.
Attorney for Plaintiff(s)
Mailing Address
P.O. Box 929
New York, N.Y. 10040
(212) 422-2110

Office: 207 E 94th Street, Suite 303
New York, N.Y. 10128

SUPREME COURT STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
RICHARD ADAMS

Plaintiff,

**VERIFIED
COMPLAINT**

-against-

CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, P.O. RICHARD CONDOR
badge # 94605, and P.O. "JOHN" DECKET
Badge # 18002.

Defendants.
-----X

Plaintiff, by and through his attorney, STEVEN W. EPSTEIN, ESQ, complaining of the defendants alleges upon information and belief as follows:

1. That at all times herein claimed plaintiff RICHARD ADAMS (hereinafter "ADAMS") residence was located at 225 West End Ave., #6 New York, N.Y. 10023

2. Upon information and belief, that at all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

3. Upon information and belief, that at all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, its agents, servants and employees operated, maintained and controlled the POLICE DEPARTMENT OF THE CITY OF NEW YORK, including all the police officers thereof.

4. That upon information and belief, that at all times herein after mentioned, the defendant police officer P.O. RICHARD CONDOR badge # 94605, was employed by the defendant NEW YORK CITY POLICE DEPARTMENT under the aegis and control of the defendant THE CITY OF NEW YORK.

5. That upon information and belief, that at all times herein after mentioned, the defendant police officer P.O. "JOHN" DECKET Badge # 18002. was employed by the defendant NEW YORK CITY POLICE DEPARTMENT under the aegis and control of the defendant THE CITY OF NEW YORK.

6. That a Notice of Claim was filed within 90 days of the occurrence alleged herein.

7. That a 50H Hearing was held pursuant to Sec. 50(h) of the General Municipal Law on December 16, 2014.

8. That more than 30 days have elapsed since the Notice of Claim and Intention To Sue has been served upon the defendants and the said defendants have neglected or refused to make any adjustment or payment thereof.

9. That this action is commenced within one year and 90 days after the cause of action arose.

**AS AND FOR A FIRST COUNT:
FALSE ARREST AND IMPRISONMENT**

10. The plaintiff repeats, reiterates and realleges each and every allegation contained in

paragraphs marked "1" through "9" with the same force and effect as if more fully set forth herein.

11. That on or about April 16, 2014, at approximately 4:20p.m, on the west side of Amsterdam Avenue, between 63rd and 64th Street, County, City and State of New York defendant, P.O. RICHARD CONDOR badge # 94605, while in the scope of his employment for THE NEW YORK CITY POLICE DEPARTMENT, his agents, servants and employees wrongfully and falsely arrested, imprisoned and detained plaintiff, ADAMS and, without any right or grounds therefore.

12. That on or about April 16, 2014, at approximately 4:20p.m, on the west side of Amsterdam Avenue, between 63rd and 64th Street, County, City and State of New York defendant, "JOHN" DECKET Badge # 18002, while in the scope of his employment for THE NEW YORK CITY POLICE DEPARTMENT, his agents, servants and employees wrongfully and falsely arrested, imprisoned and detained plaintiff, ADAMS and, without any right or grounds therefore.

13. That on or about the about April 16, 2014, at approximately 4:20p.m., the defendant P.O. RICHARD CONDOR badge # 94605, while in the scope of his employment for THE NEW YORK CITY POLICE DEPARTMENT, his agents, servants and employees, wrongfully and falsely accused the plaintiff ADAMS of crimes including felonies and misdemeanors, and/or violations.

14. That on or about the about April 16, 2014, at approximately 4:20p.m, the defendant "JOHN" DECKET Badge # 18002, while in the scope of his employment for THE NEW YORK CITY POLICE DEPARTMENT, his agents, servants and employees, wrongfully and falsely accused the plaintiff ADAMS of crimes including felonies and misdemeanors, and/or violations.

15. That the said arrest and imprisonment was caused by the said defendants, their agents, servants and employees, without any warrant, or other legal process, without authority of the law and without any reasonable cause or belief that the plaintiff, ADAMS was in fact guilty of such crimes and/or violations.

16. While the plaintiff ADAMS was legally at the location of the arrest, unarmed and posing no threat, the said defendants, their agents, servants and employees, wrongfully and unlawfully, against the plaintiff's wishes, without probable or reasonable cause, and on the sole charge, then made, that plaintiff was violating the Penal Laws of the State of New York, approached, stopped detained, arrested and imprisoned the plaintiff ADAMS.

a) That the said defendants, their agents, servants and employees acting within the scope of their authority and within the scope of their employment, approached, stopped, detained, arrested and imprisoned the plaintiff even though the defendants, their agents, servants and employees, had the opportunity to know or should have known, that the matters hereinbefore alleged, wrongfully, unlawfully and without a sufficient charge having been made against the plaintiff, directed that the plaintiff be searched and placed in confinement at said locations.

17. That said defendants did not have probable cause to stop, detain, arrest, imprison or search plaintiff ADAMS, and plaintiff was forced by the said defendants to submit to the aforesaid arrest and imprisonment thereto entirely against his will.

18. That the defendants, their agents, servants and employees, as set forth at the aforementioned time, date and place, intended to detain and confine the plaintiff; in that the plaintiff was conscious of said detainment and confinement; plaintiff did not consent to the said detainment

and confinement; and that the said detainment and confinement was not otherwise privileged.

19. That by reason of the aforesaid false arrest, imprisonment, detention, and confinement of the plaintiff, plaintiff was subjected to great indignities, humiliation and ridicule, in being so detained, and greatly injured in his credit and circumstances and was then and there prevented and hindered from performing and transacting his necessary affairs and business, and was caused to suffer much pain in both mind and body, the loss of employment and the loss of time from employment and/or opportunities.

20. That by reason of the aforesaid, the plaintiff ADAMS has been damaged in a sum that exceeds the jurisdictional limits of all lower courts.

AS AND FOR A SECOND COUNT:

ASSAULT

21. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "20" with the same force and effect as if more fully and at length set forth herein.

23. That on or about April 16, 2014, at approximately 4:20p.m, on the west side of Amsterdam Avenue, between 63rd and 64th Street, County, City and State of New York defendant, "JOHN" DECKET Badge # 18002, while in the scope of his employment for THE NEW YORK CITY POLICE DEPARTMENT, his agents, servants and employees under the aegis of THE CITY OF NEW YORK, without just cause or provocation and with great force and violence, violently seized, assaulted, and laid hold of the plaintiff ADAMS, including but not limited to intentionally, maliciously, forcefully and fiercely striking, kicking, and battering the plaintiff as he attempted to protect himself from the onslaught of the defendant(s), smashing, with great force and violence, plaintiff's body against the ground at said location, thereby causing traumatic injury to plaintiff, and thereafter causing handcuffs to be tightly placed upon the wrists of the plaintiff herein.

24. That the said defendant police officer, his agents, servants and employees, acting as agents and on behalf of defendants and within the scope of his employment as a member of the New York City Police Department, under the aegis of the City of New York, intentionally, willfully and maliciously assaulted and battered plaintiff ADAMS, in that he had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally engaged in a violent and/or menacing act(s) which threatened such contact to the plaintiff, and that act(s) caused apprehension of such contact in the plaintiff, and defendant in a hostile and/or offensive manner threatened to, and did so touch and beat the plaintiff, without his consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiff, and caused injury, and thereafter causing handcuffs to be tightly placed upon the wrists of the plaintiff herein.

25. That by reason of the aforesaid intentional assault and battery committed by the said defendant, his agents, servants and employees, acting within the scope of his authority, and without probable or reasonable cause, the plaintiff suffered great bodily injury, and thereafter causing handcuffs to be tightly placed upon the wrists of the plaintiff herein, and was rendered sick, sore, lame and disabled, and among other things, suffered conscious pain and suffering, and that he was otherwise damaged.

26. That by reason of the aforesaid, the plaintiff ADAMS has been damaged in a sum that

exceeds the jurisdictional limits of all lower courts.

**AS AND FOR A THIRD COUNT:
ASSAULT**

27. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "26" with the same force and effect as if more fully and at length set forth herein.

28. That on or about April 16, 2014, at approximately 4:20p.m, on the west side of Amsterdam Avenue, between 63rd and 64th Street, County, City and State of New York defendant, P.O. RICHARD CONDOR badge # 94605, while in the scope of his employment for THE NEW YORK CITY POLICE DEPARTMENT, his agents, servants and employees under the aegis of THE CITY OF NEW YORK, without just cause or provocation and with great force and violence, violently seized, assaulted, and laid hold of the plaintiff ADAMS, including but not limited to intentionally, maliciously, forcefully and fiercely striking, kicking, and battering the plaintiff as he attempted to protect himself from the onslaught of the defendant(s), smashing, with great force and violence, plaintiff's body against the ground at said location, thereby causing traumatic injury to plaintiff, and thereafter causing handcuffs to be tightly placed upon the wrists of the plaintiff herein.

29. That the said defendant police officer, his agents, servants and employees, acting as agents and on behalf of defendants and within the scope of his employment as a member of the New York City Police Department, under the aegis of the City of New York, intentionally, willfully and maliciously assaulted and battered plaintiff ADAMS, in that he had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally engaged in a violent and/or menacing act(s) which threatened such contact to the plaintiff, and that act(s) caused apprehension of such contact in the plaintiff, and defendant in a hostile and/or offensive manner threatened to, and did so touch and beat the plaintiff, without his consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiff, and caused injury, and thereafter causing handcuffs to be tightly placed upon the wrists of the plaintiff herein.

30. That by reason of the aforesaid intentional assault and battery committed by the said defendant, his agents, servants and employees, acting within the scope of his authority, and without probable or reasonable cause, the plaintiff suffered great bodily injury, and thereafter causing handcuffs to be tightly placed upon the wrists of the plaintiff herein, and was rendered sick, sore, lame and disabled, and among other things, suffered conscious pain and suffering, and that he was otherwise damaged.

31. That by reason of the aforesaid, the plaintiff ADAMS has been damaged in a sum that exceeds the jurisdictional limits of all lower courts.

**AS AND FOR A FOURTH COUNT:
NEGLIGENT HIRING AND RETENTION**

32. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "31", with the same force and effect as if more fully and at length set forth herein.

33. That the defendants, THE CITY OF NEW YORK, and THE NEW YORK CITY POLICE DEPARTMENT were careless, reckless and negligent in hiring and retaining their employees, the above named individuals and more particularly "JOHN" DECKET Badge # 18002: in that the said defendants' employees lacked the experience, deportment and ability to be employed by the defendants; in that the defendants failed to exercise due care and caution in their hiring practices, and in particular, hiring the defendant employees who lacked the mental capacity and the ability to function as employees of the aforementioned defendants; in that the defendants lacked the maturity, sensibility and intelligence to be employed by the defendants; in that the defendants knew of the lack of ability, experience, deportment and maturity of said defendant employees when they hired them to be employees; and, in that the defendants, their agents, servants and employees were otherwise careless, negligent and reckless.

34. That the aforesaid occurrence, to wit: the false arrest and imprisonment, assault and battery, negligent retention of employees and the resulting injuries to mind and body therefrom, were caused wholly and solely by reason of the negligence of the defendants, their agents, servants and employees without any negligence on the part of the plaintiff.

35. That by reason of the aforesaid, the plaintiff was injured in mind and body and still suffers and upon information and belief, will continue to suffer great physical and mental pain, and was rendered sick, sore, lame and disabled and so remain, and was incapacitated from his usual occupation and will, upon information and belief, be so incapacitated in the future, and have expended and incurred diverse sums of money in an effort to cure himself of said injuries, and to extricate himself from the indignities and humiliation imposed upon him by the actions of the defendants, their agents, servants and employees, including counsel fees and disbursements, and, upon information and belief, will expend further sums in that direction, and the plaintiff has been otherwise damaged.

36. That by reason of the aforesaid, the plaintiff ADAMS has been damaged in the sum that exceeds the jurisdictional limits of all lower courts.

**AS AND FOR A FIFTH COUNT:
NEGLIGENT HIRING AND RETENTION**

37. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "36", with the same force and effect as if more fully and at length set forth herein.

38. That the defendants, THE CITY OF NEW YORK, and THE NEW YORK CITY POLICE DEPARTMENT were careless, reckless and negligent in hiring and retaining their employees, the above named individuals and more particularly P.O. RICHARD CONDOR badge # 94605: in that the said defendants' employees lacked the experience, deportment and ability to be employed by the defendants; in that the defendants failed to exercise due care and caution in their hiring practices, and in particular, hiring the defendant employees who lacked the mental capacity and the ability to function as employees of the aforementioned defendants; in that the defendants lacked the maturity, sensibility and intelligence to be employed by the defendants; in that the defendants knew of the lack of ability, experience, deportment and maturity of said defendant employees when they hired them to be employees; and, in that the defendants, their agents, servants and employees were otherwise careless, negligent and reckless.

39. That the aforesaid occurrence, to wit: the false arrest and imprisonment, assault and battery, negligent retention of employees and the resulting injuries to mind and body therefrom, were caused wholly and solely by reason of the negligence of the defendants, their agents, servants and employees without any negligence on the part of the plaintiff.

40. That by reason of the aforesaid, the plaintiff was injured in mind and body and still suffers and upon information and belief, will continue to suffer great physical and mental pain, and was rendered sick, sore, lame and disabled and so remain, and was incapacitated from his usual occupation and will, upon information and belief, be so incapacitated in the future, and have expended and incurred diverse sums of money in an effort to cure himself of said injuries, and to extricate himself from the indignities and humiliation imposed upon him by the actions of the defendants, their agents, servants and employees, including counsel fees and disbursements, and, upon information and belief, will expend further sums in that direction, and the plaintiff has been otherwise damaged.

41. That by reason of the aforesaid, the plaintiff ADAMS has been damaged in a sum that exceeds the jurisdictional limits of all lower courts.

**AS AND FOR A SIXTH COUNT:
NEGLIGENT SUPERVISION AND TRAINING**

42. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "41", with the same force and effect as if more fully and at length set forth herein.

43. That the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, their agents, servants and employees were negligent, careless and reckless in failing to properly train and supervise their employees and impart upon them the knowledge of the proper circumstances under which a stop, seizure, detainment, arrest and search may be made; the proper circumstances under which force may be used; the proper administration of the use of force; in failing to impart upon them the knowledge to control their tempers and exercise the proper deportment and temperament, and to otherwise act as reasonably, prudent police officers; in failing to impart upon them proper training and instruction as to their deportment, behavior and conduct as representatives of their employers; and, in that the defendants, their agents, servants and employees were otherwise reckless, careless and negligent.

44. That the aforesaid occurrence, to wit: the false arrest and imprisonment, assault and battery, negligent hiring and retention, negligent supervision and training, and the resulting injuries to mind and body therefrom, were caused wholly and solely by reason of the negligence of the defendants, their agents, servants and employees without any negligence on the part of the plaintiff.

45. That by reason of the aforesaid, the plaintiff was injured in mind and body, still suffers, and upon information and belief, will continue to suffer great physical and mental pain, and was rendered sick, sore, lame and disabled and so remain, and was incapacitated from his usual occupation and will, upon information and belief, be so incapacitated in the future, and have expended and incurred diverse sums of money in an effort to cure himself of said injuries, to extricate himself from the indignities and humiliation foisted upon him by the actions of the defendants, their agents, servants and employees, including counsel fees and disbursements; and,

upon information and belief, will expend further sums in that direction, and the plaintiff have been otherwise damaged.

46. That by reason of the aforesaid, the plaintiff ADAMS has been damaged in a sum that exceeds the jurisdictional limits of all lower courts.

**AS AND FOR A SEVENTH COUNT:
NEGLIGENCE IN THE PERFORMANCE OF POLICE DUTIES**

47. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "46", with the same force and effect as if more fully set forth herein.

48. That the defendants, "JOHN" DECKET Badge # 18002, P.O. RICHARD CONDOR badge # 94605 and THE POLICE DEPARTMENT OF THE CITY OF NEW YORK, under the aegis of defendant THE CITY OF NEW YORK, their agents, servants and employees negligently, carelessly and recklessly performed police duties in that they failed to use such care in the performance of police duties as a reasonably prudent and careful police officers would have used under similar circumstances; in that they carelessly, recklessly and negligently caused permitted and allowed the arrest of plaintiff without making a proper investigation; in that they were negligent, careless and reckless in the manner in which they approached, directed, pursued, stopped seized, detained, confined, apprehended, arrested, imprisoned, and assaulted plaintiff ADAMS; in that the defendants, their agents, servants and employees negligently, carelessly and recklessly did so without provocation and with great force and violence; in that they negligently struck and/or caused the plaintiff to be struck; in that they negligently, carelessly and recklessly used and/or caused the use of threat of physical force, and actually used physical force upon the plaintiff, and/or caused and permitted same; and in that the defendants, their agents, servants and employees were otherwise careless, reckless and negligent.

49. That the aforesaid occurrence, to wit: the false arrest and imprisonment, assault and battery, negligent hiring and retention, negligent supervision and training, negligence in the performance of police duties and the resulting injuries to mind and body therefrom, were caused wholly and solely by reason of the negligence of the defendants, their agents, servants and employees without any negligence on the part of the plaintiff.

50. That by reason of the aforesaid, the plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great physical and mental pain, and he was rendered sick sore, lame and disabled and so remains, and he was incapacitated from his usual occupation and will, upon information and belief, be so incapacitated in the future, and he has expended and incurred diverse sums of money in an effort to cure himself of said injuries to extricate himself from the indignities and humiliation foisted upon him by the actions of the defendants, their agents, servants and employees, including counsel fees and disbursements; and, upon information and belief, will expend further sums in that direction, and the plaintiff has been otherwise damaged.

51. That by reason of the aforesaid, the plaintiff ADAMS has been damaged in a sum that exceeds the jurisdictional limits of all lower courts.

**AS AND FOR A EIGHTH COUNT:
VIOLATION OF CIVIL RIGHTS**

52. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "51", with the same force and effect as if more fully and at length set forth herein.

53. That on or about April 16, 2014, at approximately 4:20p.m, on the west side of Amsterdam Avenue, between 63rd and 64th Street, County, City and State of New York at which time and place defendant police officers, then and there were thereat as part of their regular and official employment as a police officers for the defendants, THE NEW YORK CITY POLICE DEPARTMENT, under the aegis of the defendant CITY OF NEW YORK.

54. As plaintiff was lawfully and properly thereat said defendant police officers who, having the real and apparent ability to cause imminent harmful and offensive bodily contact and the power and authority to arrest, detain and imprison the plaintiff did so threaten these acts upon the plaintiff, who, after continuing lawful activity, was violently struck by the defendants, and was handcuffed, arrested, detained and imprisoned, by the defendant police officers herein.

55. Immediately thereafter, aforementioned defendants, their agents, servants and employees severely assaulted and battered the plaintiff, falsely arrested, detained and imprisoned the plaintiff, and deprived plaintiff of his civil rights and liberties as set forth in the Constitutions of the United States of America, and of the State of New York, handcuffed and threatened plaintiff with the possible use of firearms and weapons and the use of physical force; in that they continued to assault and batter and imprison the plaintiff, and/or caused and permitted same, without any conduct on the part of the plaintiff to so warrant to wit:

a) in that all of the actions of the defendants, their agents, servants and employees, were committed with the intention to cause bodily and mental injury to the plaintiff, to arrest, detain and imprison the plaintiff without consent, the plaintiff was at all times conscious of arrest, did not consent to the false arrest and imprisonment was not otherwise privileged; and,

b) the stops, approaches, detentions, arrests and imprisonments were not justified by probable cause or other legal privilege; defendants, their agents, servants and employees, acting under the color of statute, ordinances, regulations, customs and usages of the United States of America, State, City and City of New York, and under the authority of the office as police officers for said City, falsely charged the plaintiff with sections of the Penal Law, including felonies, misdemeanors, and violations although the defendants, acting in such capacity, knew that such charges were false:

c) that the defendants, their agents, servants and employees caused an assault and battery when they in a hostile and/or offensive manner threatened, and did so touch and beat the plaintiff without consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiff, all without warrant, probable cause or any lawful cause whatsoever; and,

d) that the defendants, their agents, servants and employees failed to adequately and properly hire, retain, train, supervise, discipline or in any other way control the behavior and

performance of the defendants, their agents, servants and employees; that their hiring practices in the exercise of police functions and failure to enforce the laws of the United States of America, the State and City of New York is evidence of the reckless lack of cautious regard for the rights of the public including plaintiff; in that they exhibited a lack of that degree of due care which prudent and reasonable individuals, and police officers, would show in executing the duties of the defendants; and,

e) the failure of the defendants, their agents, servants and employees to hire, train, supervise, discipline or in any other way control the defendants, in the performance and exercise of their functions; in that their failure to enforce the laws of the United States of America, State of and City, and County of New York was and is carried out willfully, wantonly, maliciously and with such reckless disregard for the consequences so as to display a conscious disregard for the dangers of harm and injury to the citizens of the State and City of New York including plaintiff; and,

f) due to the acts of the defendants, "JOHN" DECKET Badge # 18002, P.O. RICHARD CONDOR badge # 94605, their agents, servants and employees, and the failure of the defendants, THE NEW YORK CITY POLICE DEPARTMENT and THE CITY OF NEW YORK to discipline and properly hire the defendants and the continued employment of the defendants presents a clear and present danger to the citizens of the City and State of New York, and more particularly the plaintiff herein; and,

g) that the defendants, their agents, servants and/or employees permitted the use of policy and/or drafted policy that was violative of the Constitutional rights of the above named plaintiff; and, in that each and all of the acts of the defendants, their agents, servants and employees alleged herein were done not as individuals but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the United States of America, the State of New York, and the City of New York, and under the authority of their office as police officers for said City and county.

56. Defendants "JOHN" DECKET Badge # 18002, P.O. RICHARD CONDOR badge # 94605, and THE NEW YORK CITY POLICE DEPARTMENT, acting under the aegis of THE CITY OF NEW YORK, did not have probable cause to approach, pursue, stop seize, search and/or arrest plaintiff ADAMS either before or at the time, and deprive him of his Constitutional rights as set forth in the Constitution of the United States, particularly 42 U.S.C. Sec. 1983 and the Constitution of the State of New York.

57. As a direct result of the illegal actions and conduct on the part of the said defendants, their agents, servants and employees, plaintiff was falsely approached, seized, detained, arrested and imprisoned, and assaulted and battered.

58. That at all times hereinafter mentioned, the defendant police officers, their agents, servant, and/or employees, were employed in their respective capacity by the defendant THE NEW YORK CITY POLICE DEPARTMENT under the aegis of the defendant THE CITY OF NEW YORK, and acting under the color of official capacity and said acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

59. That at all times hereinafter mentioned, the defendant police officers were acting

pursuant to orders and directives from defendant, THE NEW YORK CITY POLICE DEPARTMENT under the aegis of the defendant THE CITY OF NEW YORK.

60. That during all times hereinafter mentioned, the defendant police officers acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of THE NEW YORK CITY POLICE DEPARTMENT under the aegis of THE CITY OF NEW YORK and the defendants here, engaged in the illegal conduct here mentioned to the injury of the plaintiff ADAMS, and deprived plaintiff of the rights, privileges and immunities secured to plaintiff by the First and Fourteenth Amendments to the Constitution of the United States and the laws of the United States.

61. That the defendant Police Officers were employed by the defendant, THE NEW YORK CITY POLICE DEPARTMENT under the aegis THE CITY OF NEW YORK, their agents, servants and employees of defendant(s), together with persons unknown to plaintiff, acting under color of law, have subjected plaintiff, and other persons, to a pattern of conduct consisting of illegal harassment, assault and battery, and false imprisonments and arrests at the time said persons, and plaintiff herein were lawfully and properly on the public streets and sidewalks, in the County, City and State of New York, in denial of rights, privileges and immunities guaranteed plaintiff ADAMS and other citizens by the Constitution of the United States, and the Constitution State of New York.

62. This systematic pattern of conduct consists of a large number of individual acts of violence, intimidation, harassment, assault batter, false arrest, false imprisonment, and negligence visited on plaintiff ADAMS and other citizens by members of the police department of defendants, THE NEW YORK CITY POLICE DEPARTMENT, THE CITY OF NEW YORK, and the above named defendant police officers, acting in concert with persons unknown to the plaintiff and under color of law and said acts, while carried out under color of law, with no justification or excuse in law and which instead are illegal, improper and unrelated to any activity in which police officers may appropriately and legally engage in the course of protecting persons or property or ensuring civil order.

63. Although defendants knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and employees, the defendants, have not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents,

64. The unlawful and illegal conduct of the defendants, their agents, servants and employees and each of them, deprived plaintiff of the following rights, privileges and immunities secured to him by the Constitution of the United States and of the State of New York:

- a) The right of plaintiff to be informed of the nature and cause of the accusation against him as secured to them under the Sixth and Fourteenth Amendments to the Constitution of the United States; and,
- b) The right of plaintiff not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States.

65. That by reason of the aforesaid violations, false arrest and false imprisonment, assaults

and batteries, negligent hiring and retention, negligent training and supervision, negligent performance of police duties and violation of civil rights caused by the defendants, "JOHN" DECKET Badge # 18002, P.O. RICHARD CONDOR badge # 94605, and THE NEW YORK CITY POLICE DEPARTMENT under the aegis of THE CITY OF NEW YORK, their agents, servants and employees who conspired together to enter into a nefarious scheme to wrongfully deprive the plaintiff and compel him to abandon his rights and privileges as provided to him in the Constitution of the United States of America, and provided to him in the Constitution of the State of New York, and laws thereto, the defendants, their agents, servants and employees violated 42 U.S.C. Sec. 1983 in that the defendants, their agents, servants and employees acted as persons who under color of any statute, ordinances, regulation, custom or usage of the State and City of New York, subjected or caused to be subjected, a citizen of the United States or other persons within the jurisdiction, particularly the plaintiff ADAMS thereof to be deprived of his rights, privileges or immunities received by the Constitution and laws of the United States of America and of the State of New York; was subjected to great indignities and humiliation, and pain and distress of mind and body and was held up to scorn and ridicule, injured in character and reputation, was prevented from attending usual business and vocation and was injured in reputation in the community and the acts aforementioned were committed with the aim of injuring and damaging plaintiff.

66. That by reason of the aforesaid negligence, intentional assault and battery, false arrest and false imprisonment, and deprivation of rights and liberties as guaranteed by the aforementioned Constitutions, by the defendants, their agents, servants and employees, acting within the scope of their authority, and without any probable or reasonable cause, the plaintiff suffered great bodily injury, and thereafter causing handcuffs to be tightly placed upon the wrists of the plaintiff herein and was rendered sick, sore, lame and disabled, and among other things, they suffered conscious pain and suffering, and that he was otherwise damaged.

67. That by reason of the aforesaid, the plaintiff ADAMS has been damaged in a sum that exceeds the jurisdictional limits of all lower courts.

AS AND FOR A NINTH COUNT:

68. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "67", with the same force and effect as if more fully and at length set forth herein.

69. That by reason of the aforesaid false arrest and imprisonment, vicious assault and battery, malicious prosecution, violation of civil rights and negligence caused willfully and maliciously by the defendants, their agents, servants and employees, the plaintiff was wrongfully deprived of rights, privileges and benefits as provided under the Constitution of the United States of America and the Constitution of the State of New York; sustained severe, serious and upon information and belief, permanent injuries to plaintiff, and thereafter causing handcuffs to be tightly placed upon the wrists of the plaintiff herein, and was rendered sick, sore, lame and disabled and confined to bed and home and he was subjected to great indignities and humiliation, and pain and distress of mind and body, and was held up to scorn and ridicule, injured in character and reputation, was prevented from attending his usual business and vocation, was injured in reputation in the community and the acts aforementioned were committed with the aim of injuring and

damaging the plaintiff.

70. That by reason of the aforesaid, the plaintiff ADAMS has been damaged in the sum that exceeds the jurisdictional limits of all lower courts.

WHEREFORE: Plaintiff ADAMS demands judgment against the defendants in the sum that exceeds the jurisdictional limits of all lower courts. and reasonable attorney's fees, together with costs and disbursements of this action and such other and further relief that this Court may deem just and proper under the circumstances

Dated:
March 24, 2015

MAILING ADDRESS:

Yours, etc. 
STEVEN W. EPSTEIN, ESQ.
Attorneys for Plaintiff(s)
P.O. Box 929
New York, N.Y. 10040
(212) 422-2110

Office:

207 East 94th Street, Suite 303
New York, N.Y. 10128

To:
CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, P.O. RICHARD CONDOR
badge # 94605, and P.O. "JOHN" DECKETT
Badge # 18002.
100 Church Street
NY, NY 10007

PLAINTIFF'S VERIFICATION

STATE OF NEW YORK)

SS.:

COUNTY OF NEW YORK)

RICHARD ADAMS, being duly sworn, deposes and says:

I am the plaintiff in the within action. I have read the foregoing COMPLAINT and know the contents thereof and the same is true to my own knowledge, except as to those matters stated on information and belief and as to those matters I believe them to be true.



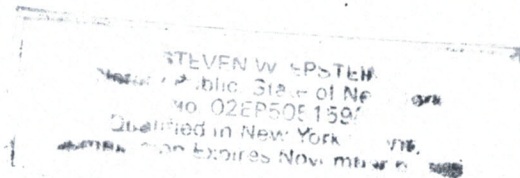
RICHARD ADAMS

Sworn to before me this

3/4/15



NOTARY PUBLIC



SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

index #-

RICHARD ADAMS

Plaintiff,

-against-

CITY OF NEW YORK the NEW YORK CITY POLICE DEPARTMENT, P.O. "JOHN"
CONDOR badge # 945605, and P.O. "JOHN" DECKET Badge # 18002

Defendants.

SUMMONS and VERIFIED COMPLAINT



STEVEN W. EPSTEIN, ESQ.
ATTORNEY FOR PLAINTIFF
RICHARD ADAMS
P.O. BOX 929
NEW YORK, N.Y. 10040
(212) 422-2110

Office: 207 E. 94th Street, Suite 303
New York, N.Y.

To:

Service of a copy of the within is hereby admitted.

Dated,

Attorney(s) for defendant(s)